

Terms of Service Agreement for Root Name Service

1. Last revision 16 May 2024
2. PLEASE READ THIS UNIVERSAL TERMS OF SERVICE AGREEMENT CAREFULLY, AS IT CONTAINS IMPORTANT INFORMATION REGARDING YOUR LEGAL RIGHTS AND REMEDIES.
3. Your use of this Site and the Services, including any content you submit, will comply with this Agreement, any applicable Services Agreement or policy that may apply to your Services and all applicable local, provincial/state, national and international laws, rules and regulations.
4. Root Name Service (RNS, We or Us) is a Digital Identity Registration Service that allows users to identify their wallet address with a human readable name. The registration process entails the registering and at times, the minting of a new blockchain-based digital asset (RNS NFTs).
5. When you register and mint a RNS NFT or re-register a RNS NFT, from Us at www.rootnameservice.com or any other Website we own (our Website/s) or a partner Website or acquire a RNS NFT from anyone on the secondary market such as MARK (or any other platform authorized by Us) or access RNS NFTs from our Website, you agree to be bound by the following terms of Service.
6. Payments for our services must be made in the specified cryptocurrency or digital currency as stated on our Website. Exchange rates, transaction fees, and network fees are subject to market conditions and are generally payable by the user.
7. Registrations and services for RNS identities on the blockchain depend on the specific rules and availability of the respective blockchain network. We do not guarantee the permanence or irrevocability of registrations as they are contingent on the continuous operation and accessibility of the blockchain on which they are stored.
8. Users must monitor and renew their RNS digital identity according to the blockchain network's protocols. We are not responsible for losses due to lapses in registration. If a RNS digital identity lapses then they may become immediately available to register by other parties. Renewal of these digital identities is at the sole responsibility of the digital identity holder at the time.
9. Data recorded on the blockchain is public and immutable. Users consent to the public recording of their registration data on the blockchain. Refer to our Privacy Policy for further details.

10. Users are responsible for ensuring their use of our services complies with all applicable laws, including those related to digital assets and blockchain technology.
11. You may sell your RNS NFT to a third party, provided you: a) use a marketplace or other platform that cryptographically verifies that you are the actual holder of the applicable NFT; and b) ensure the transfer complies with (i) any applicable terms of the marketplace or other platform on which such sale or other transfer takes place and (ii) any applicable laws, regulations, regulatory guidance, and rules. Responsibility for the renewal of all RNS's transfers to the new holder at point of sale. As sales are via a third party, RNS holds no responsibility for the transfer success or renewal arrangements.
12. Once you have sold your RNS NFT to a third party, or if you let your RNS NFT expire, you may no longer exercise any of the rights granted to you under these Terms. This means that whilst you will not need to recall any products nor remove or destroy any online contents comprising the RNS NFT, you will immediately cease and permanently desist from further copying, promoting, distributing or otherwise dealing in the RNS NFT including representing as the RNS digital identity.
13. You will comply with any marketing guidelines or policy We may issue and/or update and provide to you or post on our Website from time to time.
14. RNS may occasionally notify you of changes or modifications to this Agreement by email. It is therefore very important that you keep your account ("Account") information current. RNS assumes no liability or responsibility for your failure to receive an email notification if such failure results from an inaccurate email address.
15. You are solely responsible for the safety and management of your private wallets and validating all transactions and contracts generated by our Website before approval. Furthermore, as the RNS smart contracts run on blockchain networks and are therefore bound by its immutability, there is no ability to undo, reverse, or restore any transactions, i.e. we are unable to offer refunds on any transactions.
16. In order to access some of the features of this Site or use some of the Services, you will have to create an Account. You represent and warrant to RNS that all information you submit when you create your Account is true, accurate, current and complete, and that you will keep your Account information accurate, current and complete.
17. You indemnify and hold Us and our employees, and contractors, harmless from and against any and all claims, losses, liabilities, damages, expenses and costs (including reasonable lawyers' fees) arising from your breach or alleged breach of these Terms.
18. We make RNS NFTs and RNS available "as is", "where is". to the extent permissible by law, except as expressly stated in these terms, we do not make any representations or warranties of any kind and explicitly disclaims all other representations and warranties of any kind,

whether express, implied, written, oral or statutory, including any implied warranties as to availability, merchantability and fitness for a particular purpose.

19. You will not hold Us responsible for any damage or loss you may incur as a consequence of registering, buying, using or selling your RNS NFT or using RNS whether due to Internet connection issues, demand outstripping supply, or any other problems we cannot control. These potential losses include any gas fees for failed transactions, any excessive gas fees charged due to Website or smart contract bugs, and any loss of your RNS NFT due to Website or smart contract bugs.
20. We will not be liable for any indirect, incidental, consequential, or other non-direct damages of any kind or for any special, additional or similar damages.
21. Users are responsible for managing their digital keys and credentials necessary for accessing our blockchain-based services. Root Name Service is not liable for loss or damage resulting from misplaced, stolen, or compromised keys.
22. Our maximum aggregate liability for all damages caused, whether in contract, tort (including negligence) or otherwise in any given 12 months period is [AUD]\$100.
23. You will not use this Site or the Services in a manner (as determined by RNS in its sole and absolute discretion) that: (i) Is illegal, or promotes or encourages illegal activity; (ii) Promotes, encourages or engages in the exploitation of children, or any activity related to the proliferation of child sexual abuse material (CSAM); (iii) Promotes, encourages or engages in terrorism, violence against people, animals, or property; (iv) Promotes, encourages or engages in any spam or other unsolicited bulk email, or computer or network hacking or cracking; (v) Violates the Pharmacy Act (Ontario) or similar legislation, or promotes, encourages or engages in the sale or distribution of prescription medication without a valid prescription; (vi) Violates the Criminal Code or similar legislation in any manner; (vii) Promotes or facilitates prostitution and/or sex trafficking; (viii) Infringes on the intellectual property rights of another User or any other person or entity; (ix) Violates the privacy or publicity rights of another User or any other person or entity, or breaches any duty of confidentiality that you owe to another User or any other person or entity; (x) Interferes with the operation of this Site or the Services found at this Site; (xi) Contains or installs any viruses, worms, bugs, Trojan horses or other code, files or programs designed to, or capable of, disrupting, damaging or limiting the functionality of any software or hardware; or (xii) Contains false or deceptive language, or unsubstantiated or comparative claims, regarding RNS.
24. You will not perform any false, abusive or fraudulent activity. You will not perform any action that imposes, or may impose, in our discretion, an unreasonable or disproportionately large load on our infrastructure;

25. You will not copy or distribute in any medium any part of this Site or the Services, except where expressly authorized by RNS.
26. If you breach any provision of these Terms, we may immediately terminate your right to use the RNS NFT and any Modified Work some or all of the rights granted to you under these Terms without notice. In the event we terminate all of your rights under these Terms, you will remain the holder of your RNS NFT but you will no longer have any of the rights set out within this document.
27. We are fully committed to RNS and hope to continually develop it and grow the community.
28. Subject to the terms and conditions of this Agreement and our other policies and procedures, we shall use commercially reasonable efforts to attempt to provide this Site and the Services on a twenty-four (24) hours a day, seven (7) days a week basis. You acknowledge and agree that from time to time this Site may be inaccessible or inoperable for any reason including, but not limited to, equipment malfunctions; periodic maintenance, repairs or replacements that we undertake from time to time; or causes beyond our reasonable control or that are not reasonably foreseeable including, but not limited to, interruption or failure of telecommunication or digital transmission links, hostile network attacks, network congestion or other failures. You acknowledge and agree that we have no control over the availability of this Site or the Service on a continuous or uninterrupted basis, and that we assume no liability to you or any other party with regard thereto.
29. A RNS NFT is not an investment; it's only an identity based digital asset, It may have no resale value in future.
30. You agree that your Payment Method may be charged by RNS, or one of our affiliated entities. You understand that your transaction may be processed by an entity within the disclosed country that is affiliated with our local payment service provider, and subject to the provisions of our Privacy Policy.
31. Price Changes. RNS reserves the right to change its prices and fees at any time, and such changes shall be posted online at this Site and effective immediately without need for further notice to you. If you have purchased or obtained Services for a period of months or years, changes in prices and fees shall be effective when the Services in question come up for renewal as further described below.
32. All Products and Services are final sale, and are not eligible for refunds.
33. You are entirely responsible for any tax liability which may arise from purchasing or reselling your RNS NFT.
34. RNS is for adults only. You must be 18 or, have reached the age of majority in your jurisdiction, if that age is greater than 18, to purchase an RNS NFT.

35. Accept through the legitimate sale or disposal of your RNS NFT, you may not assign or transfer any of your rights and obligations under these Terms.
36. These Terms constitute the entire agreement between you and Us and supersedes any prior or contemporaneous understandings, whether written or oral.
37. We reserve the right to modify these terms, especially as blockchain technology evolves. Continued use of our services after changes indicates acceptance of the new terms.
38. These Terms are governed by the laws of Australia. In case of a dispute with Us, whether it relates to these Terms, an RNS NFT or RNS in any way, legal proceedings must be brought exclusively before the Australian courts.
39. If any provision of these Terms or its application is or becomes invalid or unenforceable to any extent, the remainder of these Terms and its application will not be affected and remain enforceable.
40. No failure or delay by Us to exercise any right or remedy under this Agreement will be treated as a waiver of such right or remedy.
41. Any provision within these Terms that is inherently meant to remain in effect after termination, for any reason, of these Terms, shall continue to be valid following the termination of these Terms.
42. RNS may, in its sole and absolute discretion, change or modify this Agreement, and any policies or agreements which are incorporated herein, at any time, and such changes or modifications shall be effective immediately upon posting to this Site. Your use of this Site or the Services after such changes or modifications have been made shall constitute your acceptance of this Agreement as last revised. If you do not agree to be bound by this Agreement as last revised, do not use (or continue to use) this Site or the Services.
43. RNS reserves the right to cease offering or providing any of the (i) Services or (ii) individual features, functionalities, or aspects of the Services at any time, for any or no reason, and without prior notice. Although RNS makes great effort to maximize the lifespan of all its Services and features, functionalities, or aspects of the Services, there are times when a Service or specific feature, functionality, or aspect of a Service that we offer will be discontinued or reach its End-of-Life ("EOL"). If that is the case, those Services, or the specific feature, functionality, or aspect of that Service, will no longer be supported by RNS, in any way, effective on the EOL date.
44. Should you have any questions or require any clarification regarding this Terms of Service Agreement please contact us at support@rootnameservice.com.

DISCLAIMER OF REPRESENTATIONS AND WARRANTIES

1. YOU SPECIFICALLY ACKNOWLEDGE AND AGREE THAT YOUR USE OF THIS SITE AND THE SERVICES FOUND AT THIS SITE SHALL BE AT YOUR OWN RISK AND THAT THIS SITE AND THE SERVICES FOUND AT THIS SITE ARE PROVIDED "AS IS", "AS AVAILABLE" AND "WITH ALL FAULTS".RNS, ITS OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, AND ALL THIRD PARTY SERVICE PROVIDERS DISCLAIM ALL WARRANTIES, STATUTORY, EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, ANY IMPLIED WARRANTIES OF TITLE, MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE AND NON-INFRINGEMENT. RNS, ITS OFFICERS, DIRECTORS, EMPLOYEES, AND AGENTS MAKE NO REPRESENTATIONS OR WARRANTIES ABOUT (I) THE ACCURACY, COMPLETENESS, OR CONTENT OF THIS SITE, (II) THE ACCURACY, COMPLETENESS, OR CONTENT OF ANY SITES LINKED (THROUGH HYPERLINKS, BANNER ADVERTISING OR OTHERWISE) TO THIS SITE, AND/OR (III) THE SERVICES FOUND AT THIS SITE OR ANY SITES LINKED (THROUGH HYPERLINKS, BANNER ADVERTISING OR OTHERWISE) TO THIS SITE, AND RNS ASSUMES NO LIABILITY OR RESPONSIBILITY FOR THE SAME.
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3. THE FOREGOING DISCLAIMER OF REPRESENTATIONS AND WARRANTIES SHALL APPLY TO THE FULLEST EXTENT PERMITTED BY LAW, AND SHALL SURVIVE ANY TERMINATION OR EXPIRATION OF THIS AGREEMENT OR YOUR USE OF THIS SITE OR THE SERVICES FOUND AT THIS SITE.

LIMITATION OF LIABILITY

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PROPERTY DAMAGE OF ANY NATURE WHATSOEVER, (V) THIRD-PARTY CONDUCT OF ANY NATURE WHATSOEVER, (VI) ANY UNAUTHORIZED ACCESS TO OR USE OF OUR SERVERS AND/OR ANY AND ALL CONTENT, PERSONAL INFORMATION, FINANCIAL INFORMATION OR OTHER INFORMATION AND DATA STORED THEREIN, (VII) ANY INTERRUPTION OR CESSATION OF SERVICES TO OR FROM THIS SITE OR ANY SITES LINKED (THROUGH HYPERLINKS, BANNER ADVERTISING OR OTHERWISE) TO THIS SITE, (VIII) ANY VIRUSES, WORMS, BUGS, TROJAN HORSES, OR THE LIKE, WHICH MAY BE TRANSMITTED TO OR FROM THIS SITE OR ANY SITES LINKED (THROUGH HYPERLINKS, BANNER ADVERTISING OR OTHERWISE) TO THIS SITE, (IX) ANY USER CONTENT OR CONTENT THAT IS DEFAMATORY, HARASSING, ABUSIVE, HARMFUL TO MINORS OR ANY PROTECTED CLASS, PORNOGRAPHIC, "X-RATED", OBSCENE OR OTHERWISE OBJECTIONABLE, AND/OR (X) ANY LOSS OR DAMAGE OF ANY KIND INCURRED AS A RESULT OF YOUR USE OF THIS SITE OR THE SERVICES FOUND AT THIS SITE, WHETHER BASED ON WARRANTY, CONTRACT, TORT, OR ANY OTHER LEGAL OR EQUITABLE THEORY, AND WHETHER OR NOT RNS IS ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

2. IN ADDITION, YOU SPECIFICALLY ACKNOWLEDGE AND AGREE THAT IN NO EVENT SHALL RNS TOTAL AGGREGATE LIABILITY EXCEED \$100.00 AUSTRALIAN DOLLARS.
3. THE FOREGOING LIMITATION OF LIABILITY SHALL APPLY TO THE FULLEST EXTENT PERMITTED BY LAW, AND SHALL SURVIVE ANY TERMINATION OR EXPIRATION OF THIS AGREEMENT OR YOUR USE OF THIS SITE OR THE SERVICES FOUND AT THIS SITE.